

Tentative Rulings
June 2, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

16. *Espinosa v. FCA US, LLC, et al*, Case No. CIVSB2436711
Defendant FCA's Motion for Judgment on the Pleadings
6/2/26, 9:00 a.m., Dept. S-17

CONTINUE the matter to allow movant to satisfy the meet-and-confer requirements.

Prior to a motion for judgment on the pleadings, a party is required meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is the subject of the motion . . . for the purpose of determining whether an agreement can be reached that resolves the claims to be raised in the motion for judgment on the pleadings." (Code Civ. Proc., § 439(a) [emphasis added].) Merely sending a letter informing the party that a motion is forthcoming is insufficient.

Here, the supporting declaration indicates only that a letter was sent with no response. (See Borrero Decl., ¶¶3-4.) Thus, the Court would continue the matter to allow a supplemental declaration showing compliance. Movant will file a supplemental declaration at least ten court days before the next hearing with a courtesy copy lodged directly in the department.

17. *A.P. v. County of Santa Cruz, et al*, Case No. CIVSB2129877
Defendant County's Motion for Leave to Take the Subsequent Deposition of Plaintiff
6/2/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **DENY**.

Case Summary

This is a sexual abuse case. Plaintiff A.P. alleges that she was sexually abused while in foster care roughly twenty years ago. She asserts that Defendant County of San Bernardino is liable because of its negligence and violation of its mandatory duties, specifically as it relates to the County's duties to monitor and protect. As such, Plaintiff filed suit against Defendant County of Santa Cruz, Defendant Hand in Hand Foundation, Defendant County of San Bernardino, and Defendant A Positive Attitude Outlook, on October 7, 2021. As to County of San Bernardino, Plaintiff alleges negligence. (Compl., ¶¶143-155.) Importantly here, Plaintiff filed a First Amended Complaint (FAC) recently on December 29, 2025. The FAC alleges (1) negligence (as to County); (2) negligence (as to A Positive Attitude); and (3) negligence (as to Does 5 through 25). Plaintiff alleges that she was sexually assaulted repeatedly in foster care while in custody. She further alleges physical, psychological, and emotional injuries suffered because of that alleged sexual conduct.